

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
TYRONE KIMBROUGH,

Plaintiff,

-against-

SUMMONS

Index #:

Date Purchased:

The basis of venue
designated is: The
County where the
Plaintiff resides is
Richmond County

THE CITY OF NEW YORK, POLICE OFFICER
STEPHEN D'AMICO and JOHN DOES NO. 1 through 10,

Defendants.
-----X

TO THE ABOVE NAMED DEFENDANT(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to service a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Staten Island, NY
July 24, 2019



LAW OFFICES OF ROBERT E. BROWN, PC
Attorneys for Plaintiff
TYRONE KIMBROUGH
465 Belfield Avenue, Suite F
Staten Island, New York 10312
(718) 979-9779

TO: THE CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
Division of Law – Rm 1225 South
1 Centre Street
New York, NY 10007

POLICE OFFICER
STEPHEN D'AMICO
122 PRECINCT
2320 Hylan Blvd.
Staten Island, NY, 10306

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
TYRONE KIMBROUGH,

INDEX No.

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
STEPHEN D'AMICO and JOHN DOES NO. 1 through 10,

Defendants.

-----X

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of Plaintiff's rights under the Constitution of the United States, the Constitution of the State of New York as well as the common law of the State of New York.

JURISDICTION AND VENUE

1. This is a civil rights action for money damages brought pursuant to 42 U.S.C. §§§ 1981, 1983, and 1988, the Fourth, Eighth and Fourteenth Amendments of the United States Constitution, against John Doe No. 1 through 10, POLICE OFFICER STEPHEN D'AMICO and THE CITY OF NEW YORK ("CITY"), (collectively, "Defendants").

2. Two Notices of the Plaintiff's claim and his intention to sue thereon, and of the time when and the place where his injuries were sustained, was duly served and filed with the Defendant CITY on July 26, 2018 and acknowledged by Defendant CITY. Said claims were assigned numbers 2018PI022046 and 2018PI022048. More than thirty (30) days have elapsed

since the service of such notices of claim, and Defendant CITY, has failed and refused to adjust such claims.

3. Two General Municipal Law Section 50-h Hearings were conducted by Defendant CITY on Plaintiff before the commencement of this action.

4. This action is started within one year and 90 days from the date of occurrence.

JURY DEMAND

5. Plaintiff demands a trial by jury in this action.

PARTIES

Plaintiff

6. Plaintiff TYRONE KIMBROUGH is a resident of Richmond County.

Defendants

7. At all times herein stated, Defendant CITY was, and continues still to be, a public corporation within the State of New York, and duly created, organized and existing under and by virtue of the laws of the State of New York.

8. At all times herein stated, the CITY was, and continues still to be, a municipal corporation within the State of New York, which was duly created, organized and existing under, by virtue of the laws of the State of New York.

9. At all times herein stated, the CITY did maintain a police department pursuant to law known as NEW YORK POLICE DEPARTMENT ("NYPD").

10. At all times herein stated, the CITY did maintain a corrections department pursuant to law known as NEW YORK CITY DEPARTMENT OF CORRECTIONS ("DOC").

11. Defendant CITY operates the NYPD, a department or agency of Defendant CITY responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers.

12. Defendant CITY operates the DOC, a department or agency of Defendant CITY responsible for the appointment, training, supervision, promotion and discipline of corrections officers and supervisory corrections officers.

13. Upon information and belief, Defendant POLICE OFFICER STEPHEN D'AMICO at all relevant times was assigned to the 122nd Precinct.

14. Upon information and belief, John Doe No. 1 through 5 (hereinafter collectively, "NYPD Officers") at all relevant times were employed by NYPD.

15. At all times relevant said NYPD Officers were police officers, detectives or supervisors employed by the NYPD.

16. Plaintiff does not know the real names and shield numbers, if any, of the NYPD Officers other than Defendant D'Amico.

17. At all times herein stated, the CITY did employ police officers, including Defendant D'Amico pursuant to law.

18. At all times herein stated, Defendant D'Amico and other NYPD Officers represented to the Plaintiff that they were employed by the CITY and worked at the NYPD; all of whom were in the employ of Defendant CITY and assigned to the NYPD.

19. Upon information and belief, John Doe No. 6 through 10 (hereinafter collectively, "DOC Officers") at all relevant times were employed by DOC.

20. At all times relevant said DOC Officers were corrections officers or supervisors employed by the DOC.

21. Plaintiff does not know the real names and shield numbers, if any, of the DOC Officers.

22. At all times herein stated, the CITY did employ DOC Officers pursuant to law.

23. At all times herein stated, DOC Officers represented to the Plaintiff that they were employed by the CITY and worked at the DOC; all of whom were in the employ of Defendant CITY and assigned to the DOC.

24. At all times herein stated, Defendant CITY, its agents, servants and employees, were acting under color of state law and pursuant to municipal policy and custom.

RELEVANT FACTS

25. Plaintiff resides at 30 Dongan Hills Avenue, in Staten Island, New York.

26. Plaintiff's interaction at issue with Defendants began on or about April 30, 2018.

27. Upon information and belief, on or about April 30, 2018, at approximately 7:41 p.m., Plaintiff was approached by Defendant D'Amico and another NYPD Officer while present outside the public housing complex known as the Berry Homes at or near 26 Dongan Hills Avenue, in Staten Island, New York.

28. When Plaintiff was approached by Defendant D'Amico and another NYPD Officer, they claimed to have a warrant for Plaintiff's arrest.

29. Plaintiff in fact did not have a warrant for his arrest and told The NYPD Officers that he did not.

30. As Plaintiff turned to walk away, Plaintiff was struck with an object believed to

be a taser, in the back of the head by one of the Defendants.

31. Defendants then grabbed Plaintiff, threw Plaintiff on his back and then struck in the face with the same object believed to be a taser.

32. While being held on the ground on his back, one of the NYPD Officers cursed at Plaintiff and held him down with his knee in Plaintiff's chest.

33. Plaintiff informed Defendants multiple times that he couldn't breathe to which Defendants laughed.

34. Plaintiff suffered severe injuries at the hands of Defendants.

35. Defendant D'Amico and/or another NYPD Officer present improperly used a taser to strike Plaintiff.

36. Defendants used unreasonable force by viciously and violently throwing Plaintiff to the ground and striking him with an object believed to be a taser which inflicted great pain and suffering; and continued to use such unreasonable force by refusing the suffering Plaintiff's pleas that he couldn't not breathe due to an NYPD Officer's knee being pushed into Plaintiff's chest.

37. Plaintiff was wrongfully arrested at the subject location.

38. Defendants did, without any justification or probable cause, and in bad faith, arrest the Plaintiff, take him into custody and confine him against his will.

39. Plaintiff was falsely charged with resisting arrest, obstruction governmental administration and false personation.

40. All charges were later dismissed.

41. Plaintiff was held in the custody of Defendant CITY from the date of arrest on April 30, 2018 until May 7, 2018.

42. At some point, he was transferred to Brooklyn and held illegally and against his will on an I-Card.

43. Plaintiff was re-arrested in Brooklyn. All charges were later dropped.

44. On May 4, 2018, Judge Dougherty of New York City Criminal Court ordered (“Order”) Plaintiff’s **IMMEDIATE RELEASE** from the custody of Defendant CITY. A copy of said Order is attached hereto as **Exhibit A**

45. Plaintiff was held without any legal authority and in violation of Judge Dougherty’s Order by Defendant CITY from May 4, 2018 until May 7, 2018.

46. On or about May 7, 2018, Plaintiff was taken to Supreme Court, Kings County on an unrelated charge, which was later dismissed.

47. Plaintiff waited from approximately 7 a.m., until the end of the day before a DOC Officer entered the holding room where Plaintiff was waiting to see a judge.

48. After an entire day of waiting, a DOC Officer entered the room and told Plaintiff he was released from Defendant CITY’s custody.

49. Plaintiff was then rushed out of the Supreme Court building.

50. Plaintiff later learned that the Court ordered his release on May 4, 2018, three days earlier than his actual release date on May 7, 2018.

51. The occurrence hereinabove alleged was due solely to the gross negligence and deliberate indifference of Defendants without any fault or want of care on the part of the Plaintiff contributing thereto.

52. As a result of such occurrence, the Plaintiff suffered confinement, loss of liberty, embarrassment, fear and mental anguish, was falsely caused to be confined, and was otherwise

injured and damaged.

53. On or about April 30, 2018 until May 7, 2018, Defendants without any justification or probable cause, and in bad faith and by abusing their authority, unlawfully confined the Plaintiff against his will in the City and State of New York.

54. On or about May 4, 2018 until May 7, 2018, Defendants without in violation of the Court Order, and in bad faith and by abusing their authority, unlawfully confined the Plaintiff against his will in the City and State of New York.

49. Plaintiff suffered damage as a result of Defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and damage to his reputation.

50. Plaintiff was caused to sustain physical injuries and psychological damage and to have suffered pain, shock and mental anguish; that these injuries and the effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to incur, expenses for medical care and attention.

51. Plaintiff suffered physical injury which was caused when Defendants injured, among other things when he was struck in the back of the head and in the face with an object believed to be a taser.

52. As a result of such occurrence, Plaintiff suffered: confinement; loss of liberty; shock, fright, fear; and severe mental anguish. Moreover, Plaintiff was caused to suffer: false and wrongful confinement; grave risk to his life and property. Plaintiff was also deprived of his rights, privileges and immunities secured to them by the Constitution and laws of the United States and the State of New York, including and particularly: his rights not to be subjected to

unnecessary restraint and harm; to be secure in his person against unreasonable searches and seizure; to be free from harm and from arbitrary interference with his person; freedom of movement; due process of law, and to be accorded the equal protection of the laws at the hands of persons acting under color of state law.

53. On March 18, 2019, Judge Christopher Robles determined that Defendant D'Amico did not have probable cause to arrest Plaintiff. A copy of Judge Robles' decision is attached hereto as **Exhibit B**.

54. Eventually, all charges against Plaintiff were dismissed.

**AS AND FOR A FIRST CAUSE OF ACTION
(42 U.S.C. § 1983)**

55. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

56. Defendants by their conduct toward Plaintiff alleged herein, violated Plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States.

57. Defendants, by their conduct toward Plaintiff alleged herein, violated Plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States.

58. The conduct and actions of Defendants acting under color of law and under their authority as officers was done intentionally, maliciously, with a deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific serious bodily harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §

1983 and the Fourth, Eighth and Fourteenth Amendments to the United States Constitution.

59. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein before alleged.

**AS AND FOR A SECOND CAUSE OF ACTION
(Failure to Intervene)**

79. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

80. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

81. Accordingly, the Defendants who failed to intervene violated the Fourth, Eighth and Fourteenth Amendments.

**AS AND FOR A THIRD CAUSE OF ACTION
(Monell Claim)**

82. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

83. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

84. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

85. The aforementioned customs, policies, usages, practices, procedures, and rules of the NYPD and DOC included, but were not limited to, police officers: failing to report misconduct of other officers and unlawfully searching individuals and arresting individuals.

86. In addition, Defendant CITY engaged in a policy, custom, or practice of inadequate screening, hiring, retaining, training, and supervising its employees that was the moving force behind the violation of Plaintiff's rights as described herein. As a result of the failure of Defendant CITY to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, Defendant CITY has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

87. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY, DOC and the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff.

88. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY, DOC and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

89. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY, DOC and the NYPD were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.

90. As a result of the foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY, DOC and NYPD, Plaintiff was subjected to an illegal search and unlawfully arrested.

91. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiff's constitutional rights.

92. All of the foregoing acts by defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right to be free from false arrest/unlawful imprisonment

and the right to be free from unreasonable search and seizure.

93. As a result of the foregoing, Plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

**AS AND FOR A FOURTH CAUSE OF ACTION
(Negligence)**

94. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

95. Defendants owed Plaintiff a duty of care to prevent them from being false arrested, maliciously prosecuted, illegally searched and assaulted.

96. Defendants breached that duty of care.

97. Defendants' breach of duty was the but-for cause of Plaintiff's injuries.

98. Defendants' breach of duty was the proximate cause of Plaintiff's injuries.

99. Plaintiff sustained damages, including but not limited to serious physical injuries, emotional injuries and pain and suffering as a result.

**AS AND FOR A FIFTH CAUSE OF ACTION
(Negligent Hiring, Training and Supervision Against Defendant City)**

100. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

101. The above-described injuries suffered by the Plaintiff are the proximate result of the negligence of the Defendant CITY in that Defendant CITY failed to exercise reasonable care in the hiring, employment, supervision, and training of its employees in DOC and NYPD.

102. Defendant CITY failed to properly train Defendants as to the appropriate

investigative techniques required to make an arrest based on probable cause.

103. Defendant CITY failed to exercise reasonable care by retaining and not terminating the employment of individual Defendants, or taking other appropriate corrective action. The occurrences complained of herein were due to the negligence and recklessness of the Defendant CITY.

104. By reason of the tortuous conduct of Defendants, Plaintiff has been damaged as set forth above.

**AS AND FOR A SIXTH CAUSE OF ACTION
(New York Constitution Art. I, § 11)**

105. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

106. By the aforesaid acts, defendants have violated Plaintiff's right to the equal protection of laws under Article I, § 11 of the New York State Constitution, thereby giving rise to a cause of action pursuant to that Article.

107. The conduct and actions of the individual Defendants and Defendant CITY, acting under color of law, in falsely arresting, detaining, and prosecuting Plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under laws and Constitution of the State of New York. The above-described actions and omissions engaged in under color of state law by the defendants, including defendant NYC, sued as a person within the meaning of Article I, § 11,

deprived the Plaintiff of rights, including but not limited to, rights under Article I, § 8, 9, guaranteeing freedom of expression and association, Article I, § 12, guaranteeing protection against unlawful seizure of the person, Article I, § 11 guaranteeing due process and equal protection under the law, and Article I, § 5 guaranteeing protection from cruel and unusual punishment.

108. By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

**AS AND FOR AN SEVENTH CAUSE OF ACTION
(Assault)**

109. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

110. Defendants maliciously, wantonly, unlawfully and/or intentionally acted to place Plaintiff in apprehension of imminent harmful or offensive bodily contact.

111. Plaintiff sustained damages, including but not limited to serious physical injuries, emotional injuries and pain and suffering as a result.

**AS AND FOR AN EIGHTH CAUSE OF ACTION
(Battery)**

112. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

113. Defendants maliciously, wantonly, unlawfully and/or intentionally did make body contact with Plaintiff, which was harmful, offensive and without Plaintiff's consent.

114. Plaintiff sustained damages, including but not limited to serious physical injuries, emotional injuries and pain and suffering as a result

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests judgment against Defendants as follows:

- (a) Compensatory damages against all Defendants, jointly and severally;
- (b) Punitive damages against the individual Defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: Staten Island, New York
July 24, 2019



Robert E. Brown, Esq.
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(718) 979-9779

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND**

-----X
TYRONE KIMBROUGH,

Plaintiff,

Index #: 151726/2019

-against-

**THE CITY OF NEW YORK, POLICE OFFICER
STEPHEN D'AMICO and JOHN DOES NO.
1 through 10,**

Defendant.
-----X

SUMMONS AND COMPLAINT

**THE LAW OFFICE OF ROBERT E. BROWN, P.C.
Attorney for Plaintiff
465 Belfield Avenue, Suite F
Staten Island, NY 10312
(718) 979-9779**

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that to the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of this document or the contentions contained therein are not frivolous.

Dated: July 24, 2019

**Signature: 
Signer's name: Robert E. Brown**